

26LBCV00120 26LBCV00120

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26LBCV00120 Hearing Date: August 10, 2026 Dept: S25

Motion: Plaintiff Robert Baldwin's Motion for Relief Pursuant to Code of Civil Procedure section 473, subdivision (b) for Relief from Untimely Filing of Plaintiff's Second Amended Complaint

Moving Party: Plaintiff Robert Baldwin ("Plaintiff")

Responding Party: Defendant Ford Motor Company ("Defendant")

Background

On January 14, 2026, Plaintiff filed a complaint against Defendants Ford Motor Company and Does 1 to 10, alleging the following causes of action:

Violation of Song-Beverly Act - Breach of Express Warranty;

Violation of Song-Beverly Act - Breach of Implied Warranty; and

Violation of the Song- Beverly Act Section 1793.2.

On March 3, 2026, Plaintiff filed a first amended complaint ("FAC"). Plaintiff alleges that on or about January 7, 2025, purchased a 2023 Ford-150, having VIN No.: 1FTFW1RG2PFB77848 ("the Subject Vehicle"), the Subject Vehicle was purchased as a certified pre-owned ("CPO") with an accompanying FORD MOTOR COMPANY's new and full CPO warranty and the Subject Vehicle was purchased from Defendant FORD MOTOR COMPANY authorized retail dealership FAIRWAY FORD. (FAC ¶ 8.) Plaintiff also alleges that "Defendant FORD MOTOR COMPANY stepped into the role of a retailer and is subject to the obligations of a retailer under Section 1795.5." (FAC ¶ 11.) On May 8, 2026, the Court sustained the demurrer to the FAC with 15 days leave to amend. (May 8, 2026 Minute Order.) On June 3, 2026, Plaintiff filed a second amended complaint ("SAC"). On June 5, 2026, the Court granted the ex parte application to dismiss entire action and for entry of judgment. (June 5, 2026 Minute Order.) On July 29, 2026, Defendant filed an opposition. On July 30, 2026, the Court denied Plaintiff's ex parte application to advance the instant motion hearing. (July 30, 2026 Minute Order.) On August 6, 2026, no reply has been received.

Legal Standard

Code of Civil Procedure section 473 states: "(b) The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. However, in the case of a judgment, dismissal, order, or other proceeding determining the ownership or right to possession of real or personal property, without extending the six-month period, when a notice in writing is personally served within the State of California both upon the party against whom the judgment, dismissal, order, or other proceeding has been taken, and upon the party's attorney of record, if any, notifying that party and the party's attorney of record, if any, that the order, judgment, dismissal, or other proceeding was taken against the party and that any rights the party has to apply for relief under the provisions of Section 473 of the Code of Civil Procedure shall expire 90 days after service of the notice, then the application shall be made within 90 days after service of the notice upon the defaulting party or the party's attorney of record, if any, whichever service shall be later. No affidavit or declaration of merits shall be required of the moving party. Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, this section shall not lengthen the time within which an action shall be brought to trial pursuant to Section 583.310."

Parties' Arguments

Plaintiff seeks relief under Code of Civil Procedure section 473, subdivision (b) from the untimely filing of the SAC. The SAC was filed on June 3, 2026, past the 15 days leave to amend period that the Court gave Plaintiff when it sustained the FAC on May 8, 2026. (May 8, 2026 Minute Order.) Plaintiff asserts that the error was discovered on June 3, 2026 and that the error was due to a calendaring error. (Treybig Decl., ¶¶ 6, 7, Ex. 1.) Plaintiff's counsel takes responsibility for the mistake. (Treybig Decl., ¶¶ 7-10.) In opposition, Defendant states that the internal calendaring and assignment failure that Plaintiff's counsel discusses is not enough, adding that the moving papers do not identify any extraordinary circumstance, external interference or unavoidable event that prevent compliance. Defendant asserts that Plaintiff has not shown excusable neglect warranting discretionary relief. Defendant then notes that even if excusable neglect and diligence could be established, discretionary relief should still be denied because the proposed SAC does not cure the certified pre-owned default.

Tentative Ruling

The Court finds that Plaintiff's counsel has demonstrated enough to warrant discretionary relief under Code of Civil Procedure section 473, subdivision (b). (Treybig Decl., ¶¶ 6-8, Ex. 1.) Plaintiff to file and serve the First Amended Complaint within 5 days of this ruling.